

26CV01812 Lydia I Perez vs Juan Velasquez

County: santa-barbara

Division: Unlimited Other Real Property (26)

Department: 2 SM-Cook

Hearing date: 2026-08-11

Motion: Demurrer

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Tentative Ruling: Lydia I Perez vs Juan Velasquez

Case Number

26CV01812

Case Type

Unlimited Other Real Property (26)

Hearing Date / Time

Tue, 08/11/2026 - 08:30

Nature of Proceedings

Demurrer

Tentative Ruling

On March 19, 2026, plaintiff Lydia Perez (plaintiff), in propria persona, filed an unverified complaint against defendant Juan Velasquez (defendant) for 1) partition by sale pursuant to Code of Civil Procedure section 872.010, et seq; and 2) declaratory relief. The lawsuit involves residential real property located at 1001 North 6th Street, Lompoc California (hereafter, real property). According to the complaint, the parties purchased the property in or about 2020 for \$375,000. Plaintiff alleges: "Although the legal title is currently held solely in Defendant's name," the real property was "acquired as a joint undertaking between Plaintiff and Defendant." At the time of the acquisition, plaintiff's mother "provided approximately \$47,000 [to] \$50,000 toward the down payment" of the real property; plaintiff has "repaid approximately \$18,000" toward the mother's loan, while defendant has repaid "approximately \$1,000" toward the mother's loan. It appears plaintiff and defendant "resided" in the real property "as their family home" until recently. Plaintiff has "continuously contributed one-half of the monthly mortgage payment" and has "contributed to the maintenance and preservation of the" real property "through payment of household and operational expenses." Plaintiff alleges that she has "contributed to acquisition and preservation" of the real property (i.e., she did all that she has done) "with the understanding that she possessed an ownership interest" in the real property. "Defendant has refused to enter into a final written agreement resolving the ownership dispute."

Defendant, also in propria persona, demurs to both causes of action.

Plaintiff, with counsel, filed and served a first amended pleading on July 29, 2026, raising five new causes of action. No doubt the first amended complaint was intended to moot the demurrer. Code of Civil Procedure section 472, subdivision (a) permits this, which reads as follows: "A party may amend its pleading once without leave of court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer . . . is heard if the amended pleading is filed and served no later than the date for the filing of the opposition to the demurrer. . . ." (Emphasis added.) Pursuant to Code of Civil Procedure section 1005, subdivision (b), opposition to a demurrer has to be filed nine (9) court days before the hearing. Pursuant to Code of Civil Procedure section 12c, subdivision (a), where "any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform the act shall be determined by counting backward from the hearing date, excluding the date of the hearing as provided by Section 12." Under this calculation, the first amended complaint is timely (as it was filed and served exactly nine (9) court days before the August 11, 2026 hearing date). Accordingly, defendant's demurrer is now moot and will be taken off calendar.

Judges

Judge James F. Rigali

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